

		alleged subsequent conduct in breaching its warranty obligations. (Complaint, ¶¶ 51, 53-54, 56, 62.) The motion for judgment on the pleadings based on the economic loss rule is DENIED. Plaintiff to file and serve a First Amended Complaint within 30 days, consistent with the ruling above. GM to give notice.
12.	30-2024-01432573 Cho vs. Lennar Homes of California, LLC	1. Motion for Summary Judgment and/or Adjudication NO TENTATIVE YET, PLEASE CHECK BACK.
13.	30-2024-01379003 Dib vs. Daher	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Terminating Sanctions 3. Motion to Vacate <u>Motion 1- Defendant Hien Nguyen’s Motion for Summary Judgment/Adjudication</u> Defendant Hien Nguyen (“Defendant”) moves for summary judgment or adjudication in her favor as to the: (1) first cause of action for fraudulent transfers in violation of Civil Code section 3439.04, (2) second cause of action for conspiracy to fraudulently convey property, (3) third cause of action for aiding and abetting fraudulent conveyance of property, (4) fourth cause of action for accounting, and (5) fifth cause of action for imposition of a constructive trust and/or preliminary and permanent injunction, and accounting. Plaintiffs Joseph Dib and R&R Life is Amazing (“Plaintiffs”) oppose the motion. Based on applicable law, and as set forth herein, the Motion is GRANTED in its entirety. “Summary judgment is properly granted if ‘there is no triable issue as to any material fact and ... the moving party is entitled to a judgment as a matter of law.’” (<i>Mitchell v. Hutchinson</i> (2025) 112 Cal.App.5th 1012, 1016 [citing Code Civ. Proc., § 437c, subd. (c)].) “A defendant seeking summary judgment must show that the plaintiff cannot establish at least one element of the cause of action.” (<i>Id.</i> [citing <i>Regents of University of California v. Superior Court</i> (2018) 4 Cal.5th 607, 618 and Code Civ. Proc., § 437c, subd. (p)(2)].) “If the defendant makes this showing, ‘the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.’” (<i>Id.</i> [citing Code Civ. Proc., § 437c, subd. (p)(2)].) 1. First Cause of Action for Fraudulent Transfers in Violation of Civil Code Section 3439.04 Defendant Nguyen argues that she is entitled to summary adjudication on the first cause of action for fraudulent transfers in violation of Civil Code section 3439.04 because she “purchased the Subject Property in good faith and for a reasonably equivalent value pursuant to Civil Code section 3439.08, which is a complete defense to Plaintiffs’ Cause of Action.”